

City of Davao and Dureza v. First Meridian Development, Inc., G.R. No. 240078 (October 19, 2022)

Case ID: DAVAO-TIER3-04 | **Ordinance:** Ordinance No. 158-05 §423 (2005)

Judicial Ruling: Ultra Vires and Void (Mandatory Payment Under Protest Struck Down)

Superior National Law: Republic Act No. 7160 §195

Gold NLI Conflict Classification: Contradiction

Operative Sections & Judicial Text:

SECTION 1. TITLE:

This Ordinance shall be known and cited as the '2005 Revenue Code of the City of Davao'.

SECTION 423. PAYMENT UNDER PROTEST:

No protest against an assessment shall be entertained unless the taxpayer first pays under protest the tax assessed, stating the legal grounds within thirty (30) days from payment.

STATUTORY COLLISION:

Directly contradicts Section 195 of Republic Act No. 7160 (Local Government Code), which governs administrative protests against local business tax assessments and deliberately does not mandate prior payment under protest, unlike Section 252 governing real property taxes. The Supreme Court held that local legislative bodies cannot impose unauthorized procedural preconditions that restrict statutory remedies.